

2025 WHOLESALE LEISURE RATE AND SERVICES AGREEMENT

Specially prepared for

BOUNTIFUL SAFARIS



JW Marriott is a truly inspiring 'Spafari' camp, with transformative daily game drive adventures, personalized and uncompromising hospitality and an extensive range of regenerative camp experiences, JW Marriott Masai Mara Lodge spectacularly showcases the rich cultural and natural spectacle of The Masai Mara. Set in a unique and awe-inspiring sunset location, it's the perfect place to go for a regenerative mind, body and spiritual journey. Conscious and respectful to land and people, every step of the way, we as JW Marriott Masai Mara Lodge have given a special focus and spotlight on conservation and community projects.

Rate Agreement

In accordance with and subject to the terms and conditions set forth, the following are our expectations of Company name in order to receive the Special Rate and Services from **JW MARRIOTT MASAI MARA LODGE**. The Special Rate is confidential and cannot be promoted or sold on the internet or otherwise (including third party websites) unless 'packaged' with other elements. Companyname must ensure that reasonable steps are taken to ensure its B2B Partner doesnot sell the room rates provided in a manner that discloses directly or indirectly the accommodation room rate.

Duration: This rate is valid from 6th **January 2025**, through **5th Jan 2026** during which time the same shall be reviewed on basis of room night productivity every quarter. The hotel reserves the right to change/withdraw/continue the rates witha 30 days' notice.

Room Availability: The Special Rate is available on a space available basis and at times may not be available unless allotments have been agreed upon in thisAgreement.

Validity	High/Peak Season 20 th Dec 2025 – 5 th Jan 2026 1 st Jun 2025 – 15 th Oct 2025	Shoulder/Low Season 6 th Jan – 31 st May 2025 16 th Oct – 19 th Dec 2025
Per person sharing	\$1,600	\$1,000
Single room	\$1,850	\$1,250
Children 6 – 12 Years in own room	\$1,057	\$714
Children 6 – 12 years sharing with adults	\$925	\$625
Guide/Pilot	\$500	\$500
Honey moon supplement/Family Suite	\$1000 (Per room per night)	\$1000 (per room per night)
JW Marriott Masai Mara foundation fees	\$15	\$15

*The above rates are Nett rates and non-commissionable.

Included in the rates:

- ♦ Accommodation and meals on FB basis, tea, water and coffeeSelect alcoholic and non-alcoholic drinks
- ♦ Bush meals – Bush breakfast or picnic lunch, once during your stay, weather permittingSundowners – Once during your stay, weather permitting
- ♦ 2 shared game drives per day
- ♦ Refreshments on game drives Bird watching
- ♦ Guided walking safaris Wifi throughout the lodge
- ♦ Return airstrip transfers from Keekorok airstrip
- ♦ Use of the JW photo studio, gym, pool and teens clubEmergency Medical
- ♦ Evacuation Services
- ♦ Laundry services – 5 items per person per dayAll
- ♦ statutory taxes

Excluded in the rates:

- ♦ Champagnes, premium wines and spirits Masai Mara
- ♦ Park entrance fee
- ♦ Spa treatments
- ♦ Items of personal nature
- ♦ Gratuities

Activities at an additional cost:

- ♦ Flights and safaris to and from the Masai Mara National ReserveHot air balloon safaris
- ♦ Visit to the rhino sanctuary
- ♦ Cultural village entrance fees
- ♦ Guided horseback riding
- ♦ Exclusive use of vehicle – subject to availability – USD 450 per day

GROUP RATE

- ♦ Group rate for minimum of 10 paying rooms and above are negotiable on ad hoc basis, except during
- ♦ Easter or festive period.
- ♦ Exclusive use of property available on request, please inquire for rates and trading terms.

TOUR LEADER

Complimentary accommodation will be granted to bona fide tour leaders on half twin rate basis after a minimum of 10 paying rooms, a maximum of 2 complementary guests in a group – subject to confirmation and room availability.

FAM TRIPS

We welcome and value the necessity of familiarization (FAM) trip to our properties. Please inquire for agent rate, terms and conditions.

Please note that we do not accept FAM trips during the following months: June, July, August, September, December and the beginning of January.

SINGLE ROOM POLICY

Maximum of 3 single rooms per group at single room rate, any additional single room request will be charged at a double room rate.

CHILDREN POLICY

The property is unfenced and for safety reasons, we don't recommend children below the age of 6 years.

BOOKING RESERVATIONS AND CONFIRMATION

All reservations are subject to room availability unless a firm room allotment has been agreed upon as part of this Agreement.

A booking will only be confirmed upon receipt of a booking voucher from the tour operator (payment terms and conditions as per contract), and any further amendments should follow the same procedure. A booking confirmation voucher will be sent to the agent upon receipt of full payments as per the invoice. Please ensure that clients have a copy of their confirmation voucher, as they are required to present this voucher on arrival at the lodge.

CHECK - IN | CHECK - OUT

Check-in time is 12:00 noon check-out time is 10:00 am All guests arriving before 12:00 noon will be accommodated as rooms become available. Baggage may be checked-in for those arriving early if rooms are unavailable.

PAYMENT TERMS

	Shoulder/Low Season	Peak/High Season
On Confirmation	30% non-refundable deposit. Balance due 60 days prior to arrival date.	30% non-refundable deposit* Balance due 60 days prior to arrival date.
Cancellation Policy	100% cancellation fees will be charged on bookings cancelled within 60 days prior to arrival	100% cancellation fees will be charged on bookings cancelled within 60 days to arrival date Bookings will be held for 7 days prior to confirmation.
Provisional Bookings	Bookings will be held for 7 days prior confirmation.	

RELEASE PERIOD

All reservations, cancellations and/or amendments must be made in writing and receipt of cancellation must be acknowledged in writing by JW Marriott Masai Mara Lodge.

JW MARRIOTT MASAI MARA LODGE reserves the right to cancel or amend the Services without any liability where the Services cannot be supplied at all or cannot be supplied as described or agreed due to circumstances beyond its control or the control of the applicable third party suppliers.

BOOKING REQUIREMENTS

All bookings are subject to Lodge standard booking requirements, available upon request, cancellation policies, check-in and check-out times.

PAYMENTS FROM GUESTS

The Lodge will collect payment from its guests for any automatic and mandatory charges, and incidental charges not included in the Standard Room Charge (defined below).

LODGE INFORMATION

All information provided to you by the lodge must be reproduced without changes. You must provide the Hotel with copies of any distributed content at points of sale upon request. You shall make Marriott guest rooms available for booking using only the rate plans provided by Lodge under this Agreement. You shall not display other third party rate plans or other information for the Lodge including wholesale and other third party affiliated rate plans and information. "Your Channel(s)" means, except as disapproved by Marriott or lodge in its sole and absolute discretion from time to time, collectively, any mechanism (e.g., websites, xml feeds or call centers), in each case owned or operated by you or one of your affiliates, through which you market Dynamic Packages directly for booking by Lodge guests. All terms and conditions of this Agreement applicable to you shall apply directly and in full to your Channels. "Dynamic Package" means the combination of a room made available under this Agreement with one or more other travel-related components of material value such as air inventory, rental car inventory, or rail ticket, that is booked concurrently in the same session where the Rate is not apparent to the guest.

RATES VALID FOR OPAQUE PACKAGED TRAVEL ONLY

All rates quoted herein are applicable to FIT leisure packaged travel only. The rates quoted in this Agreement are only for you to facilitate the booking by individual transient leisure travel guests of opaque packaged rates, not for business travel or group travel-oriented channels. You are not authorized to release these rates to any other individual or entity, including but not limited to, internet booking/electronic distribution systems, except to offline travel agencies or as and to the extent specifically authorized by Marriott or the Hotel from time to time and subject to its sole and absolute discretion to terminate with immediate effect any prior authorizations. You may not offer these rates as room-only / unbundled bookings in any manner (e.g. room tax and/or fees listed separately). Package components must be booked concurrently with the room booking, and the prices for each of the package components (hotel room, airfare and/or car rental) shall not be itemized for, disclosed to or discernible by the guest at any time (including but not limited to billing statements) and you must not provide functionality which would permit guests to strip the package down to view Hotel room rates separately at any time. Furthermore, you agree to indemnify lodge for any loss or damage arising from your breach of this Section.

REVENUE AND TAXES

For guest rooms booked by guests through you or your Channels at rates provided through this Agreement, you will pay the lodge an amount equal to 100% of the rate plus any applicable taxes and other charges (the "Standard Room Charge") not included in the rate above. As between you and the Lodge, you will retain all amounts by which the price of a Dynamic Package exceeds the Standard Room Charge (the "Guest Price") You will be solely responsible for, and will timely remit to the proper taxing authorities, any and all taxes, duties, charges and governmental fees that are applicable to the difference between the Guest Price and the Standard Room Charge.

DISCLOSURE

You must, and must take commercially reasonable steps to ensure that your Channels: (a) advise all guests that they are responsible for payment of all charges over and above the Standard Room Charge (e.g., internet access); and (b) clearly and conspicuously disclose to guests in advance of booking all state and local taxes and all automatic or mandatory charges (e.g., resort charges) specified by the lodge, so as to ensure affirmative, knowing consent by the guest to such fees prior to purchase.

COMPLIANCE WITH LAWS

You will comply with all applicable foreign and domestic laws, codes, regulations, ordinances and rules with respect to your obligations under this Agreement and the services to be provided by you hereunder, including but not limited to any laws and regulations governing package and tour travel operators/organizers.

PERSONAL DATA

Each party acts as an independent controller with respect to its processing of personal data in connection with this Agreement. Each party will comply with its respective obligations under applicable data protection laws with respect to its processing of such personal data. To the extent that either party provides personal data to the other party pursuant to this agreement, the party supplying the personal data confirms that it has consent or another legal basis to provide the personal data to the receiving party and for the receiving party to process the personal data consistent with this Agreement, and in accordance with its applicable privacy policy. For clarity, nothing in this Agreement limits a party's ability to use an individual's personal data to the extent directed by, consented to or requested by such individual.

INSURANCE

You must procure, maintain and keep in full force and effect during the term of the agreement adequate insurance coverage (including public liability or commercial general liability insurance and property) as required by law, with a reputable company, including insurance coverage as required under applicable Marriott standards as Hotel may notify you from time to time.

DISPUTE RESOLUTION

The parties agree that any dispute in any way arising out of or relating to this Agreement will be resolved by arbitration before JAMS/ENDISPUTE® or the American Arbitration Association in the state and city in which the Hotel is located or the closest available location; provided, however, a dispute relating to infringement of intellectual property rights shall not be subject to this provision. The parties further agree that in any arbitration proceeding they may conduct reasonable discovery pursuant to the arbitration rules, that the law of the state, province or country in which the Hotel is located will be the governing law, and any arbitration award will be enforceable in that state's, province's or federal court.

RELOCATED CUSTOMERS

Lodge will follow its customary relocation policy in regard to Customers. It is standard practice when relocating a customer, to refer the customer to a comparable Marriott affiliated lodge in the area or a hotel of another brand in the area with comparable standards of hospitality.

TERMINATION

1. Either party may terminate this Agreement at any time upon 30 days' written notice to the other party.
2. Hotel reserves the right to cancel any booking made in breach of the Agreement.
3. Any breach by you of obligations under Your Obligations will be a material breach of the Agreement, resulting in an immediate suspension or termination of the Agreement, as solely determined by Hotel in its reasonable judgment. You shall inform Hotel of any violations of the Agreement of which you become aware.
4. Upon termination of the Agreement, Hotel and you will continue to honor the terms of the Agreement with respect to any booking made prior to the termination date for dates following the termination date, unless termination occurred due to a monetary breach.

FORCE MAJEURE

If acts of God or government authorities, natural disasters, pandemic, or other emergencies beyond a party's reasonable control make it illegal or impossible for such party to perform its obligations under this agreement, such party may terminate this agreement upon written notice to the other party without liability.

NOTICE: Any notice required or permitted by the terms of this Agreement must be in writing.

ACCEPTED AND AGREED TO:

[Company Name]

[JW Marriott Masai Mara Lodge]

By: [signature & stamp]

By: [signature & stamp]

Name: _____

Name: _____

Title: _____

Title: _____

Date: _____

Date: _____

Billing Contact: _____

E: sales@jwmarriottmasaimara.com, Tel: +254797222999 | +2540746222999

